Montgomery County District Court

Cause No. 2025-CV-0009

Todd Lee, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Todd Lee

Date:	October 21, 2025
Location:	Offices of Gardner & Morris Law Group
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Garrett Wallace, Gardner & Morris Law Group

Q: Please state your full name for the record.

A: I'd rather not put my full name in a transcript, but you can call me the plaintiff.

Q: Understood. Where were you living at the time of the accident?

A: In Katy, Texas, in a townhome off one of the main parkways.

Q: Walk me through what you were doing that afternoon before the collision.

A: I had finished a shift and was driving home. Traffic was stop-and-go on the feeder road, the kind where everyone starts and stops every few seconds.

Q: What happened when the vehicle stopped?

A: I had come to a complete stop behind a sedan at a light. I felt a hard jolt from behind. My head snapped back and then forward, and my seatbelt locked across my chest.

Q: Did you get out of the car at the scene?

A: I got out, but my neck felt tight right away and my shoulders were burning. I sat on the curb until the officer arrived.

Q: Did you go to a doctor after the accident?

A: The same evening, I went to an urgent care clinic. They took X-rays and told me I had whiplash and muscle strain in my neck and upper back.

Q: Have you received any further treatment since then?

A: Yes. I started physical therapy about two weeks later, three times a week at first, and then twice a week. I still do exercises at home every morning. My primary care doctor also prescribed medication for the muscle spasms.

Q: How have you been feeling day to day?

A: Some days are manageable, but on others I wake up with a stiff neck and headaches that start at the base of my skull. Turning my head to check my blind spot when I merge is harder than it used to be.

Q: Has the injury affected your work?

A: I'm on my feet for most of my shift, and I had to ask for lighter duties for about a month. Sitting for long periods in the car is uncomfortable, so I have shortened my longer drives.

Q: Have you been able to do your regular hobbies?

A: I used to play recreational volleyball on weekends. I haven't been able to return to that yet because lifting my arms overhead causes pain across my upper back.

Q: Do you have any prior injuries to your neck or back?

A: Nothing serious. I had a minor sprain years ago that resolved with rest.